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File No: EXP202306261

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 22/05/2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against RENEDO JOHNSEY, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: PS/00094/2023

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On 28/02/2021, a document was submitted to this Spanish Agency for Data Protection by A.A.A. (hereinafter, the complainant), in which a complaint is made regarding the regulations on personal data protection.

In the complaint, the following is stated:

“The website -***URL.1- lacks a privacy policy and cookie notice (as well as a Legal Notice). At the bottom of the main page -attached- it uses a form through which it collects personal data, supposedly for sending Newsletters, without the need to accept any privacy policy (as indicated, it does not appear to have one) and, therefore, without knowing what treatment will be given to the collected data.”

Along with the complaint, the following documents are provided, among others:

- A copy of the form to be filled out in case one wishes to subscribe to the Newsletter of the website ***URL.1. It includes spaces for the identifying data of the person, specifically, name and email.

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SECOND: On 29/06/2021, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the complaint submitted by the complainant was admitted for processing.

THIRD: On 04/05/2023, an action was taken to incorporate two screenshots of the website ***URL.1 into the file, in which the following is observed:

- Contact form made available to users of the website, which collects the following personal data: first name and surname, email.
- Subscription form for the website that collects personal data related to first name, surname, and email.

- Information that appears in the lower left margin of the homepage of the website, which states the following: “***BRAND.1 is a registered trademark owned by B.B.B., registered in sheet B-537383, VOLUME 46988. PAGE 38. Registration date: 23/07/2019-CIF B67465716.”

Therefore, this Agency has become aware of the existence of a possible non-compliance by RENEDO JOHNSEY, S.L. (hereinafter, RENEDO) with the provisions of the regulations on personal data protection.

FOURTH: According to the report obtained from the AXESOR tool, the entity RENEDO JOHNSEY, S.L. is a microenterprise established in 2019, with a sales volume of 237,650 euros in 2021.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary issues

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The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Therefore, in accordance with the above definitions, the processing of personal data is evident, as B.B.B. collects personal data (name, surname, and email address) through the contact and subscription forms available on the website ***URL.1.

III

Transparency in the processing of personal data

Processing must be governed by the principles outlined in Article 5 of the GDPR, which states:

"Personal data shall be:

a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency');
(...)."

The principle of transparency is primarily regulated in Articles 12 to 14 of the GDPR. In this regard, Article 12 of the GDPR establishes that "1. The controller shall take appropriate measures to provide the data subject with all information referred to in Articles 13 and 14" and contains various rules regarding the "form" in which the mandatory information must and can be provided. The content of the information regarding the processing of data that must be provided to the data subject is regulated in the GDPR in Articles 13 and 14, which distinguish two scenarios: that the data is collected from the data subject (Article 13 GDPR) or obtained from another source (Article 14 GDPR).

Article 13 "Information to be provided when personal data are collected from the data subject" of the GDPR states:

"1. When personal data are obtained from a data subject, the controller shall provide the data subject, at the time of obtaining the data, with all the information referred to below:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or

by a third party;

e) the recipients or categories of recipients of the personal data, if any;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent processing of data:

a) the period for which the personal data will be stored or, if not possible, the criteria used to determine that period;

b) the existence of the right to request from the controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;

c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

e) whether the provision of personal data is a statutory or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data;

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e) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the expected consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

4. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

In this regard, Recital 60 of the GDPR states that "The principles of lawful and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any additional information necessary to ensure lawful and transparent processing, taking into account the specific circumstances and context in which the personal data are processed. The data subject must also be informed of the existence of profiling and the consequences of such profiling. If the personal data are obtained from the data subjects, they must also be informed whether they are obliged to provide the data and of the consequences of failing to do so."

In light of the documentation in the administrative file, it is evident that the website https://***URL.1 lacks the necessary privacy policy. In this case, it is mandatory to incorporate it since RENEDO, through the contact and subscription form, collects personal data (name, surname, and email address) and, consequently, processes such data.

However, regarding the issue of cookies, it has not been determined that non-exempt cookies are installed, so RENEDO is not obliged to inform about these.

Consequently, in accordance with the evidence available at this stage of the initiation agreement of the present sanctioning procedure, and without prejudice to the outcome of the investigation, it is concluded that RENEDO may have committed a violation of Article 13 of the GDPR by not having a privacy policy on its website https://***URL.1.

IV

Classification of the violation of Article 13 of the GDPR

If confirmed, the aforementioned violation of Article 13 of the GDPR could constitute the commission of the violation classified in Article 83.5.b) of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

a) (...)

a) The rights of data subjects under Articles 12 to 22;"

For the mere purposes of prescription, Article 72.1 h) of the LOPDGDD qualifies as very serious "The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law." The statute of limitations for very serious violations provided for in Organic Law 3/2018 is three years.

IV

Proposal for sanction for the violation of Article 13 of the GDPR

The corrective powers of the Spanish Data Protection Agency, as the supervisory authority, are established in Article 58.2 of the GDPR. Among them is the power to impose an administrative fine in accordance with Article 83 of the GDPR - Article 58.2 i) - or the power to order the data controller or processor to ensure that the processing operations comply with the provisions of the GDPR, when appropriate, in a specified manner and within a specified timeframe - Article 58.2 d).

According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2 d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

In the present case, taking into account the facts presented and without prejudice to the outcome of the investigation of the procedure, it is considered that the sanction that should be imposed is an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with Article 83.1 of the GDPR. In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

"2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding whether to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damage and detriment suffered by the data subjects;

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d) the degree of responsibility of the data controller or the processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;

e) any previous infringement committed by the data controller or the processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) how the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have been previously ordered against the data

controller or processor in relation to the same matter, the compliance with such measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42;

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to point k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party could have included the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

The balance of the circumstances considered allows for an initial assessment of a fine of €2,000.00 (two thousand euros) for the infringement of Article 13 of the GDPR.

V

Adoption of measures

If the infringement is confirmed, it may be agreed to impose on the data controller the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, under which each supervisory authority may “order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In such a case, in the resolution adopted, this Agency may require RENEDO, as the data controller, to incorporate the appropriate privacy policy into the website www.balletdebarcelonacom.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against RENEDO JOHNSEY, S.L., with NIF B67465716, for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5.b) of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

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FOURTH: That for the purposes provided in article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €2,000 (two thousand euros), without prejudice to what results from the instruction.

FIFTH: NOTIFY this agreement to RENEDO JOHNSEY, S.L., with NIF B67465716, granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that should be imposed in the present procedure. With the application of this reduction, the sanction would be set at €1,600.00, resolving the procedure with the imposition of this sanction and the corresponding measures.

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €1,600.00, and its payment will imply the termination of the procedure, with the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with that which corresponds to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €1,200.00.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (€1,600.00 or €1,200.00), it must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

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Furthermore, you must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount paid.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, where applicable, from the draft initiation agreement. Once this period has elapsed, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es) and the Electronic Notification Service (notificaciones.060.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the proceedings. You are informed that you can identify an email address to this

Agency to receive the notice of availability of notifications and that the lack of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On 02/06/2023, the party being claimed has proceeded to pay the fine in the amount of 1200 euros, making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or administrative appeal against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

FOURTH: In the aforementioned initiation agreement transcribed earlier, it was indicated that if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...". In this regard, it was indicated as follows: "In the resolution adopted, this Agency may require RENEDO, as the data controller, to incorporate the appropriate privacy policy into the website www.balletdebarcelonacom.com."

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Having acknowledged the responsibility for the infringement, the imposition of the measures indicated above is appropriate.

It is warned about the provisions of Article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that "The controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it." This principle refers to the obligation that falls on the data controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures to ensure that data processing is in accordance with the regulations but also to remain actively vigilant throughout the entire lifecycle of the processing to ensure that this compliance is correct, being additionally able to demonstrate it.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public

Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

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3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditional upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

Having proceeded with the payment of the pecuniary sanction, in accordance with section 2 of this article, voluntary payment implies the termination of the procedure, except with respect to the restoration of the altered situation. Therefore, it is appropriate to impose the necessary measures to cease the conduct or to correct the effects of the infringement.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202306261, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER RENEDO JOHNSEY, S.L. to, within ten working days from the date this resolution is notified to it, prove to this Agency that it has adopted the measures described in the "Legal Grounds" of the initiation agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to RENEDO JOHNSEY, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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